

25STCV01356 25STCV01356

County: los-angeles

Division: Civil Law and Motion

Department: 310

Hearing date: 2026-08-07

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Case Number: 25STCV01356 Hearing Date: August 7, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 310

Hearing Date: August 7, 2026

Case Name: Kunze v. Carpenter & Zuckerman, LLP, et al.

Case No.: 25STCV01356

Matter: Motion to Compel Further Responses

Moving Party: Plaintiff Domanic Kunze

Responding Party: Defendants Carpenter & Zuckerman and Paul Zuckerman

Notice: OK

Ruling: The Motion is denied.

Moving party to give notice.

The Court encourages all parties to appear remotely via LA CourtConnect. If submitting on the Court's tentative ruling, please follow the instructions provided above.

On January 17, 2025, Plaintiff Domanic Kunze filed a complaint for (1) legal malpractice, (2) breach of fiduciary duty, and (3) breach of contract.

On April 16, 2025, Plaintiff filed a First Amended Complaint ("FAC"). Plaintiff alleges that he lost his arm in an injury but that his former attorneys negligently settled his personal injury suit for only \$21,402.49.

Plaintiff now seeks to compel Defendants Carpenter & Zuckerman and Paul Zuckerman to provide further responses to his requests for admission.

The Motion is denied. Seeking information about attorney departures relative to firm misconduct has no bearing on whether the standard of care was breached. Further, the term "catastrophic injury" is vague and subjective. For the remaining RFAs, Defendants either appropriately denied the RFA or stated they were unable to admit or deny the RFA. The Court cannot force more ideal responses.

No sanctions.

Moving party to give notice.